



United Kingdom: Immunity and Government and Executive Agencies in the 1700s

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UNITED KINGDOM

IMMUNITY AND GOVERNMENT AND EXECUTIVE AGENCIES IN THE 1700s

In the United Kingdom, Crown immunity, and its application to government and executive agencies, has evolved gradually through the common law and into statute. Initially, immunity was extremely liberal, but due to the many injustices this caused it slowly became increasingly restrictive.

A maxim of the English law is that the King can do no wrong. One result of this maxim was that the Crown was not liable for the torts of its servants,¹ even if the Crown itself had ordered the tort. This meant that the servants of the crown became personally liable for any torts committed by them, even if they were acting in an official capacity.² As employees of government agencies are servants of the crown, rather than the servants of the head of that agency the court found that the head of the department was not liable for acts done by their employee.³

In an example of immunity at common law in a contractual situation, the court in *Macbeath v. Haldimand* ruled that a person acting in a public capacity for a government agency was not personally liable for any they may enter into in this capacity as the other party should be aware that they are acting on behalf of the Crown.⁴ The judges in this case held that “no man would ever accept of any office of trust under Government upon such condition; where a man acts as agent for the public, and treats in that capacity, there is no pretense to say that he is personally liable.”⁵

More recent texts have stated that a principle of the common law is that immunity applies to governmental agencies unless expressly excluded by statute.

¹There has been considerable debate regarding what is meant by a crown servant, a term that was initially a concept from the common law . Despite definitions of the term in recent statutes, it is difficult to ascertain its exact meaning in the earlier case law and statutes. It generally appears to refer to an individuals and bodies acting on behalf of the Crown.

²W. S. Holdsworth, *A HISTORY OF ENGLISH LAW*, Vol. VI. 1937, p.267. citing *Danby* (1701) 1 Ld. Raym. 646.

³*Id.* citing *Lane v. Cotton*, (1701) 1 Ld. Raym. 646.

⁴Glanville L. Williams, *CROWN PROCEEDINGS*, 1948.

⁵*Macbeath v. Haldimand* (1786) 1T.R. 174 at 182.

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